



EAGLE MOUNTAIN PLANNING COMMISSION MEETING MINUTES

August 24, 2021, 5:30 p.m.
Eagle Mountain City Council Chambers
1650 East Stagecoach Run, Eagle Mountain, Utah 84005

5:30 P.M. – Eagle Mountain City Planning Commission Work Session

COMMISSION MEMBERS PRESENT: Jeremy Bergener, Matthew Everett, Christopher Pengra, Erin Wells, and Brett Wright.

ELECTED OFFICIALS PRESENT: Councilmember Donna Burnham, Primary Liaison to the Planning Commission.

CITY STAFF PRESENT: Steve Mumford, Assistant City Administrator/Community Development Director; Tayler Jensen, Senior Planner; and Elizabeth Fewkes, Recording Secretary.

Commissioner Wright called the meeting to order at 5:33 p.m.

1. Discussion Items

1.A. DISCUSSION ITEM – Upcoming Code Amendments

Assistant City Administrator/Community Development Director Steve Mumford presented the item. During this Legislative session Utah Code 10-9a-403(2)(b) was updated to “In drafting the moderate income housing element, the planning commission...(iii) shall include a recommendation to implement three or more of the following strategies.” The potential allowable strategies include, “(E) create or allow for, and reduce regulations related to, accessory dwelling units in residential zones.” Chapter Nine, Moderate Income Housing, in the Eagle Mountain General Plan, Strategy 6 is to “Allow for accessory dwelling units, including detached units, to be integrated into residential neighborhoods.”

Utah Code 10-9a-530 Internal Accessory Dwelling Units requires that one Accessory Dwelling Unit (ADU) must be a permitted use in any area zoned primarily for residential use. A municipality may not establish any restrictions or requirements governing size in relation to the primary dwelling, total lot size, or street frontage.

A municipality may:

- Prohibit installation of a separate utility meter.
- Require that an internal ADU be designed to not change the appearance of the primary dwelling as a single-family dwelling.
- Require one additional on-site parking space.
- Replace parking spaces contained within a garage or carport if an internal ADU is created within that area.

- Prohibit an internal ADU within a mobile home.
- Require the owner of the primary dwelling to obtain a permit or license for renting an internal ADU.
- Prohibit the creation of an internal ADU within a zoning district covering an area that is equivalent to 25% or less of the total area in the municipality that is zoned primarily for residential use.
- Prohibit an internal ADU if the primary dwelling unit is served by a failing septic tank.
- Prohibit the creation of an internal ADU if the lot is 6,000 square feet or less.
- Prohibit the rental of an internal ADU for a period of less than 30 consecutive days
- Require owner-occupancy of the primary residence.
- Record a notice for an internal ADU at the County.

Proposed amendments to EMMC 17.70:

- Use “Accessory Dwelling Units (ADUs)” rather than “Accessory Apartments.”
- Require a separate entrance on the side or rear.
- Detached ADUs requirements:
 - Height – In accordance with accessory building height in EMMC 17.25.040, generally 20 feet, or 35 feet when above a garage.
 - Size – A minimum of 300 square feet and no larger than 50% of the primary home’s footprint with a maximum of 1,000 square feet and no more than 2 bedrooms.
 - Setbacks – A minimum of six feet side and rear and six feet from the home or other structure. Five feet from the property line if no windows, doors, or openings.
 - Architectural style, building materials, and colors shall be compatible and consistent with the architectural style, materials, and color of the primary dwelling unit.
 - The ADU may have separate utility meters, but must be in the property owner’s name.
- Off-street parking for one vehicle, in addition to the two vehicles for the primary residence. Tandem driveway parking in front of a garage does not qualify. All parking shall be on a hard surface such as concrete or asphalt. Occupants may not park on the street along the frontage of a neighboring property.
- Short-term rental shall be prohibited. ADUs may not be rented for less than 30 consecutive days.
- Tiny Homes are permitted if they are at least 300 square feet, permanently connected to utilities, and attached to a site-built permanent foundation.
- Transfer of Ownership – ADU permits shall remain valid upon sale of the home or transfer of ownership.

Detached ADUs in compliance with EMMC 17.70 would be a permitted use in the RA1, RA2, RD1, RD2, FR, R1, R2 zones, permitted on lots greater than 8,000 square feet in the R3 and RC zones, and prohibited in the MF1 and MF2 zones. ADUs within the primary residence in compliance with EMMC 17.70 would be a permitted use in all zones except the MF1 and MF2.

Mr. Mumford clarified that the State Code will be implemented in October 2021 and the City desires to have complaint standards in place prior to execution.

Discussion ensued clarifying the requirement for a side or rear ADU entrance is due to aesthetical considerations rather than fire code and regarding possibly allowing flexibility by permitting Planning Commission approval of not fully compliant ADUs to increase affordable housing options, mitigating ADU parking and traffic concerns, the option and reasons to consider requiring a single utility connection in the landlord's name, side and front setbacks in relation to the size and number of stories of the primary dwelling unit and lot shape and size, privacy concerns with and potential negative impacts to neighbors should ADUs be permitted near the rear property line, impact variances between internal and external ADU, possibly having different standards for existing homes that vary from new construction, and ADUs standards for other cities including Lehi charging an ADU impact fee.

Commissioner Wright requested for staff to postpone discussion of the other upcoming code amendments to allow time for item 1.B.

Mr. Mumford informed the Planning Commission additional upcoming code amendments include standards for gun clubs and shooting ranges, private and public roads, and water-wise landscaping.

1.B. CONCEPT PLAN – Beto's

Senior Planner Tayler Jensen presented the item. This is a commercial concept plan development for 3709 Campus Drive which includes a Beto's restaurant and additional pad sites and space for a future detached building with drive-through-only services. The potential 1.21-acre commercial development is located on lot 2 of a new lot configuration within the Eagle Mountain Business Campus recorded plat amendment. The subject property is part of The Ranches and was identified for commercial use through the master development plan (MDP) and master development agreement (MDA). That agreement has since expired and the vested rights no longer carry. The General Plan Future Land Use Map identified the property as Community Commercial. Commercial projects are subject to EMMC 17.72 Commercial Design Standards. The cross-access connections were discussed during the development review committee meeting and the applicant worked with the 7-Eleven developer to the west to determine the location for a shared access onto Campus Drive.

Mr. Jensen explained that the applicant has been working with the Utah Department of Transportation regarding the location of the Wride Memorial Highway expansion and the resulting grading work for the site.

Commissioner Everett expressed safety concerns due to potential conflicts with pedestrians parking in the eastern area crossing the drive-through lane.

Mr. Jensen noted staff shared the concern due to the lot shape providing for less-than-ideal parking configuration and suggested a raised pedestrian crosswalk to increase pedestrian safety and driver awareness.

Discussion ensued regarding parking concerns and requirements.

Commissioner Wells expressed concern with the drive-throughs meeting stacking requirements due to drive-through popularity and usage in the City resulting in long queues, especially for the coffee/soda shack location traffic backing up onto Campus Drive.

Commissioner Bergener stated he has no objection to the design elevations presented; however, he feels the elevations should be examined to determine if they meet Municipal Code design standards including requirements for similarity in appearance to surrounding commercial locations due to previous discussion regarding design compatibility of adjacent businesses.

Mr. Jensen verified that staff feels the articulation depicted is appropriate for an application at this stage of development; however, the design differs from the red brick 7-Eleven elevations and it is for the Planning Commission to decide to recommend strict or lenient enforcement of the design compatibility standards.

Discussion ensued regarding building design compatibility required for other businesses in the area.

Commissioner Everett agreed that for consistency, the Planning Commission should possibly recommend the inclusion of design elements to complement the design of the 7-Eleven.

Commissioner Wells suggested the addition of a column on the rear elevation to enhance the visual appeal.

Commissioner Wright adjourned the work session at 6:25 p.m.

6:30 P.M. – Eagle Mountain City Planning Commission Policy Session

Commissioner Wright called the meeting to order at 6:33 p.m.

2. Pledge of Allegiance

Commissioner Pengra led the Pledge of Allegiance.

3. Declaration of Conflicts of Interest

None.

4. Approval of Meeting Minutes

4.A. July 13, 2021 Planning Commission Minutes

MOTION: *Commissioner Wells moved to approve the July 13, 2021 minutes as amended with grammatical changes communicated to staff. Commissioner Everett seconded the motion. Those voting aye: Jeremy Bergener, Matthew Everett, Christopher Pengra, Erin Wells, and Brett Wright. The motion passed with a unanimous vote.*

4.B. July 27, 2021 Planning Commission Minutes

Commissioner Wells requested a change on page nine to the motion to approve the site plan for Stonebridge Montessori to amend the fourth condition to “additional signage shall be added to the parking lot to increase pedestrian safety.”

MOTION: *Commissioner Wells moved to approve the July 27, 2021 minutes as amended. Commissioner Pengra seconded the motion. Those voting aye: Jeremy Bergener, Matthew Everett, Christopher Pengra, Erin Wells, and Brett Wright. The motion passed with a unanimous vote.*

5. Status Report

Mr. Jensen reviewed the planning items discussed and voted upon during the August 3, 2021 City Council meeting.

6. Action and Advisory Items

6.A. PUBLIC HEARING – Oquirrh Mountain Ranch Phase B

Mr. Jensen presented the item. The Oquirrh Mountain Master Development Plan and Master Development Agreement were approved in 2011 and cover a total of 120.4 acres. At approval, the development was vested with 417 units and 15.5 acres of open space. A significant portion of the open space was to be unimproved due to the terrain. This agreement was amended later in 2011, with the overall unit vesting remaining the same. In 2016, the MDA was further amended reducing the maximum number of units to 346 units and requiring 5.5 acres of improved open space. The 2016 approval represents a project density of approximately 2.9 dwelling units per acre for the 120.4 acres.

Overland Village Two is adjacent to the south and the approved concept plan has large lots along the north border of their property. To date, 54 single-family units and a Church of Jesus Christ of Latter-day Saints chapel have been developed on 18 acres, leaving approximately 102.4 acres to be developed. The existing development is 27 units below the vested unit counts; 7 of 30 vested units were built in pod PA 10, 37 of 39 were built in pod 9a, and 10 of 12 were built in pod 2a. If Oquirrh Mountain Ranch were to be built out according to existing approvals up to an additional 292 units could be constructed. In contrast, if this proposal were to be approved, the maximum full buildout would be 283 units, with 54 existing and 229 new lots resulting in a reduction of 63 units, representing 18% of the total units, compared to the current approval and 134/32% units fewer than the initial approval.

The applicant has worked with Eagle Mountain City, Division of Wildlife Resources, and the Eagle Mountain Nature and Wildlife Alliance citizen group to dedicate 330 feet along the north and northeast side of the project as wildlife corridor. In addition to these 330 feet, the applicant has agreed that all open space east of the eastern cul-de-sac should be included in the wildlife corridor. In addition to this land being deeded to the City, staff recommends that it be rezoned

open space, along with the application of the Wildlife Corridor Overlay. After discussion with staff and the wildlife citizen group, the applicant removed some lots and a frisbee golf course from the wildlife corridor area to preserve the area and encourage wildlife use and accessibility. Additional native open space is proposed in the northwest corner and central areas of the property. The open space is connected to the area proposed for the wildlife corridor and the Planning Commission may determine if the area should be included in the Wildlife Corridor Overlay or zoned as OS-N and dedicated to the City.

The approved MDA was zoned Residential with Tier II, III, and IV requirements and 5.3 dwelling units per acre. The closest equivalent zoning under the current standards would include OS, MF1, MF2, and RC zoning. The proposed plan contemplates 2.35 dwelling units per acre and requests OS and RC zoning with amended development standards. City RC development standards require a minimum lot size of 4,500 square feet, an average lot size of 6,000 square feet, a minimum frontage of 58 feet, a front setback of 15 feet, a driveway set back of 22 feet, a rear setback of 20 feet, side setbacks of eight feet and 10 feet on the garage side, and a corner set back of 15 feet. The proposed modification of development standards requests an average lot size of 5,442 square feet, a minimum frontage of 40 feet, rear setbacks of 15 feet, and side setbacks of five feet. The vested single-family Tier II development standards allow a minimum 55-foot frontage with 20% of the development requiring 60-foot frontages and 20-foot frontages on a cul-de-sac or circle, 15-foot front setbacks, 22-foot driveway setbacks, 15-foot rear setbacks, and five-foot and ten-foot side setbacks with ten-foot setbacks on the garage side, and 15-foot corner setbacks.

The development has a current density approval of 346 total units with up to an additional 292 units. The allowable density in unbuilt pods is 265 units; those units combined with the 54 built units result in an actual maximum density of 319 units. The application proposes an additional 229 units, resulting in a total of 283 units. The proposal is 63 units under the current max density and 36 units under the actual max density. The proposed lot sizes include 61 lots with 40-foot frontages, 109 lots with 45-foot frontages, and 59 lots with 50-foot or greater frontages. The required connectivity score for the RC zone is 1.75. The proposal has a connectivity score of 1.611. Code allows exceptions due to topography or other natural features. The development has topographical challenges which may justify the reduced score. The development has an existing connection to the east to Pony Express Parkway and will connect to Overland to the south and future development to the west. Connectivity to the north is not desirable due to topography and the wildlife corridor.

The applicant has designated park and open space for the entire 283-unit Oquirrh Mountain Ranch project, which requires a park of approximately 6.50 acres and 650 amenity points. The applicant is proposing to provide 2,403 amenity points. However, included in the applicant's amenity point calculations are 930 points for their unique petroglyph park improvements and amenities, 114 points for an incline trail calculated at one point per vertical foot, and 244 points for a hiking trail. The point totals represent points awarded for paved trails and dirt trails are worth fewer points. Staff believes the hiking trail is over-calculated and should be reduced to 61 to 122 points. The 945 amenity points for the wildlife corridor is calculated based upon the number of points awarded for buildable land dedicated to the City for the overlay and needs to be recalculated to reduce the number of points awarded for the unbuildable portion of the property because amenity points in the wildlife corridor should only be granted for significant buildable property. However, the

proposal will likely still meet the amenity point requirements once the calculations are corrected. Open space plans show the existence of a narrow native open space corridor along the south edge of the property. While this is likely shown to provide for a sewer line in the scenario that a lift station is required, there are concerns with leaving a narrow strip of unimproved open space that will be behind two different sets of lots. Staff recommends for the petroglyph park and native open space to be dedicated to the City. Open spaces 2 through 6 shall be owned and maintained by the homeowner's association (HOA) and be zoned OS-I.

The applicant is proposing a 51-foot right-of-way. The developed portion of Oquirrh Mountain Ranch was built with a 51-foot right-of-way with four-foot, rather than five-foot sidewalks. If a lift station is required, it shall be maintained by the HOA.

Should the Planning Commission determine to recommend approval of the master development plan to the City Council, staff recommends the following conditions:

1. All open space within the wildlife corridor, 330 feet on the northern edge of the project and all property east of the eastern cul-de-sac shall be zoned OS-N with the Wildlife Corridor Overlay;
2. All other native open space shall be zoned OS-N;
3. All improved open space, OS-1 through OS-6, shall be zoned OS-I;
4. All residential pods shall be zoned RC;
5. If a lift station is necessary, it shall be owned and maintained by an HOA; and
6. The approval of the master development plan is conditional based upon the approval of an amended master development agreement.

Condition four should include direction regarding any allowed frontage width standard exceptions if deemed appropriate.

A motion to table may be made with specific directions to give the applicant time to fully comply with code requirements or to make desired changes.

If the MDP is recommended for approval and the Planning Commission motions to recommend approval of the preliminary plat to the City Council, staff recommends the following conditions:

1. The preliminary plat shall comply with the development standards approved in the MDP;
2. The preliminary plat shall include any changes made during the MDP approval; and
3. The applicant provides evidence that they meet the minimum open space requirement of 6.50 acres.

Should the Planning Commission table the MDP, staff recommends for the Planning Commission to table the preliminary plat to allow the applicant time to update the plans to comply with Municipal Code or any requested changes, including any detailed items as conditions. Should the MDP receive a recommendation of denial, the recommendation must be based upon findings of facts indicating how the project does not comply with specific sections of Municipal Code.

Applicant representative Tray Ferrell presented information regarding the project to the Planning Commission and explained they removed all the multifamily units and intend to develop single-family, detached product. They desire to have the dedication of the unimproved, native wildlife

corridor to fulfill their requirement for 6.5 acres of improved open space. Per staff recommendations, they integrated the lot frontage widths throughout the community to increase visual variety rather than clustering the unit types together. The compacted, native mountain bike trail system is planned to connect to the future City park to the north and the existing trails east of Pony Express Parkway. Large, wooden blocks with gravel filling between levels will be used to tier the steep incline areas on the hiking trail. The petroglyph park will have amenities such as bike racks, trash receptacles, picnic tables, and gazebos with a wood and black metal design.

Commissioner Wright opened the public hearing at 7:03 p.m.

Bettina Cameron stated that Divisions of Wildlife Resources and the Eagle Mountain Nature and Wildlife Alliance citizen group have partnered with others in working with the developer of this project regarding the wildlife corridor. Their citizen group asked for the frisbee golf course to be removed because a future wildlife and pedestrian bridge is planned for the southeast end of the wildlife corridor to cross Pony Express Parkway. The inclusion of the open space, running north to south in the center of the housing development, in the wildlife corridor would increase the ability to qualify for State grant funding by augmenting the services provided to residents and the number of organizations included in the partnerships. Including the petroglyph park in the wildlife corridor would add historical and educational services. The wildlife fencing should not impede public enjoyment of the areas.

David Sanchez, an Oquirrh Mountain Resident inquired regarding the required 6.5 acres of improved open space and a clubhouse for the existing and future residents in the development.

Mr. Jensen confirmed that if the applicant removes the multifamily units from the development, a clubhouse would no longer be required.

Commissioner Wright closed the public hearing at 7:09 p.m.

Mr. Jensen verified that there are no submitted plans or vested rights for the land to the west of the development.

Commissioner Everett said due to the topographical challenges of the area, it is appropriate to allow decreased connectivity and a lower connectivity score. He agrees with the staff assessment that the amenity points will meet the requirements once the required calculations occur. He has considerable concern with a 40-foot frontage, significant concern with a 45-foot frontage, and some concern with a 50-foot frontage. Although he appreciates the density reduction, he is not inclined to granting exceptions to the frontage width requirements. He views the requested frontages as an attempt to build a detached townhome product without being accountable for providing multifamily amenity requirements, although he recognizes that may not be in the intent of the applicant. The current approval has multifamily units along the southern border of the development abutting Overland's larger lots which is in opposition to the transitioning requirements. He advocated for prioritizing zoning maps for the City to prevent incongruity with transiting standards for zoning approvals. He suggested including townhome product in the development. He appreciates the collaboration for the wildlife corridor and said the lots backing the wildlife corridor could be a more premium product.

Commissioner Wells agreed with Commissioner Everett regarding the applicant's willingness to preserve the wildlife corridor and concerns with the proposed frontages. Narrow frontages are not as aesthetically appealing and cause other issues. Reduced side setbacks can increase flooding problems. As such, she feels eight and ten-foot side setbacks should be required. Strategic multifamily uses could compensate for the financial impact of the land donated for the corridor. She is less concerned with the request to reduce the right-of-way width by reducing the sidewalk than she would be for a request to reduce the road width. She agrees that the amenity calculation totals are inflated and strongly urged the applicant to consider a playground area for the residents due to the proposed smaller lots with unusable yard areas due to topography.

Commissioner Pengra said he had severe concerns for the multifamily proposed in the earlier plans especially due to traffic issues. Although he is not generally in favor of the smaller lots, due to the housing market, he feels that smaller lot frontages might be more appropriate due to cost factors. He would rather see the smaller frontages than multifamily. Due to consideration of the land dedicated for the wildlife corridor, he thinks it might be an appropriate accommodation.

Commissioner Wright expressed concern with the narrow frontages and side setbacks due to the difficulty in accessing the backyards with lawn care, landscaping, and other equipment. He appreciates the work of the applicant to preserve the wildlife corridor. Although he recognizes the validity of housing price concerns, the current agreement requires 55-foot frontages with 20% of the units having 60-foot frontages. The lot frontage should be sufficient to provide the utility that the people need as single-family homeowners. He agrees with the staff drainage concerns regarding the proposed setbacks.

Discussion ensued regarding concerns with frontage widths, setbacks insufficient for parking a vehicle or trailer on the side of a home, window wells reducing side yard utility, the frontage requirements in the MDA, and potentially adding multifamily units.

Commissioner Wright recommended for the application to be tabled.

Commissioner Everett noted that the units as presented would not allow for the homeowner to meet the additional parking requirements to have an accessory dwelling unit to assist with the affordability of the homes. He thinks that future planning based upon the pandemic circumstances is poor planning.

Commissioner Wright explained that the MDA requires a ten-foot corridor, coordinated with the School and Institutional Lands Administration, to serve as a transition.

Discussion ensued regarding potential locations to incorporate multifamily units.

Commissioner Bergener said he lives in an area with narrow frontages and setbacks. He sees both where this product type is feasible as far as assisting with the financial situation of families and the resulting challenges of spacing houses close together. He is torn regarding an appropriate solution and agrees with the appreciation expressed to the applicant for working to reduce the

density and facilitating the wildlife corridor. However, the dedication of the land to the wildlife corridor has resulted in challenges to fit the density desired by the applicant in a smaller area.

Commissioner Wells said her frontage width concern is mainly due to aesthetical considerations because homes with narrow frontages have a garage dominant appearance. Nevertheless, she does not desire to create high design standards that render the homes unaffordable. She is willing to make some concessions due to the dedication of land for the wildlife corridor but is uncomfortable approving frontages under 50-feet wide.

MOTION: *Commissioner Wells moved to table the Master Development Plan and Agreement for Oquirrh Mountain Ranch Phase B to allow the applicant time to increase lot frontage and side setbacks to eight to ten feet per staff's recommendation and to implement other Planning Commission member suggestions discussed during the meeting including consideration of replacing some of the 40-foot and 45-foot frontage units with multifamily units. Commissioner Everett seconded the motion. Those voting aye: Jeremy Bergener, Matthew Everett, Erin Wells, and Brett Wright. Those voting nay: Christopher Pengra. The motion carried with a vote of 4:1.*

Commissioner Pengra said he dissented because due to the concessions and value of the land the developer is willing to dedicate to the City and market conditions, he thinks permitting narrow frontages is appropriate.

MOTION: *Commissioner Wells moved to table the preliminary plat for Oquirrh Mountain Ranch Phase B to allow the applicant time to increase lot frontage and side setbacks to eight to ten feet per staff's recommendation and to implement other Planning Commission member suggestions discussed during the meeting including consideration of replacing some of the 40-foot and 45-foot frontage units with multifamily units. Commissioner Everett seconded the motion. Those voting aye: Jeremy Bergener, Matthew Everett, Erin Wells, and Brett Wright. Those voting nay: Christopher Pengra. The motion carried with a vote of 4:1.*

Commissioner Pengra clarified that, although he had the same objections to tabling the preliminary plat, for consistency, he would not recommend for the preliminary plat to move forward independently from the approval of the MDP and MDA for Oquirrh Mountain Ranch.

6.B. Coyote Run – ITEM REMOVED AT APPLICANT REQUEST

This item has been removed at the request of the applicant.

7. Discussion Items

8. Next scheduled meeting

The next Planning Commission meeting is scheduled for September 14, 2021.

9. Adjournment

MOTION: *Commissioner Everett moved to adjourn the meeting at 7:48 p.m. Commissioner Bergener seconded the motion. Those voting aye: Jeremy Bergener, Matthew Everett, Christopher Pengra, Erin Wells, and Brett Wright. The motion passed with a unanimous vote.*

The meeting was adjourned at 7:48 p.m.

Approved by the Planning Commission on September 14, 2021.


Steve Mumford (Sent: 9/14/2021 13:06 MDT)

Steve Mumford, AICP
Assistant City Administrator/Community Development Director

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Final Audit Report

2021-09-15

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-  Document created by Shawna Ellis (sellis@emcity.org)
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